

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, September 4, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28320 against Police Officer Anthony Arena, Tax Registry No. 960171. The case was conferenced on August 22, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the dismissal of the charge in return for the recommended negotiated penalty of Command Discipline Schedule "A" and forfeiture of three (3) vacation days.

Andre Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28320
BOOK & PAGE NO. Page <u>1</u> of <u>1</u>
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, ARENA	FIRST ANTHONY	M.I.	COMMAND 032 PRECINCT
SHIELD NO. 8750	TAX REGISTRY NO. 960171	SOCIAL SECURITY NO.	DATE APPOINTED 01/06/2016	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Anthony Arena, on or about February 27, 2022, at approximately 1620, while assigned to 032 PCT and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he threatened to arrest § 87(2)(b) without sufficient legal authority.	DISMISSED	VACATION DAYS 3.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated.

DC Brubaker
FIRST DEPUTY COMMISSIONER

11/26/24
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

Jessie J. J. J.
POLICE COMMISSIONER

12/19/24
DATE

1DC #2023-1998

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner November 22, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-28320 against Police Officer Anthony Arena, Tax No. 960171, with the recommendation that Charges and Specifications against Police Officer Arena be dismissed and that Police Officer Arena receive a Schedule "A" Command Discipline, with the forfeiture of three (3) vacation days; I concur. **FOR YOUR APPROVAL.**

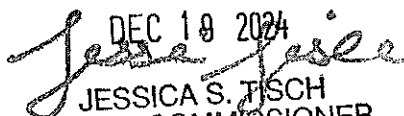


Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

DEC 18 2024

JESSICA S. TISCH
POLICE COMMISSIONER